

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.:

Date Purchased:

-----X
MIGUEL ZORRILLA,

SUMMONS

Plaintiff,

Plaintiffs designate New York
County as the place of trial.

- against -

THE CITY OF NEW YORK and P. O. MORALES

The basis of venue is:
Place of occurrence

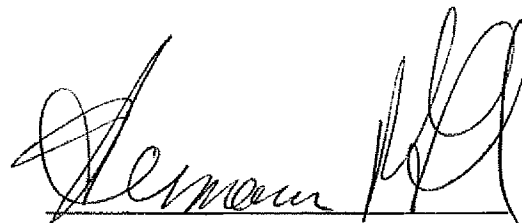
Defendant
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Place of occurrence:
1920 Washington Avenue
New York, New York

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Garden City, New York
July 29, 2020



HERMANN P. GRUBER
STEINBERG & GRUBER, P. C.
Attorneys for Plaintiff
300 Garden City Plaza, Ste. 218
Garden City, New York 11530
(516) 663-0999
Our File No.13954

TO:

THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
MIGUEL ZORRILLA,

Index No.:
Date Purchased:

Plaintiff,

VERIFIED COMPLAINT

- against -

THE CITY OF NEW YORK and P.O. MORALES,

Defendants.

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Plaintiff, by his attorneys, **STEINBERG & GRUBER, P. C.**, complaining of the
Defendants, respectfully allege upon information and belief:

**AS AND FOR A FIRST CAUSE OF ACTION
ON BEHALF OF MIGUEL ZORRILLA AGAINST DEFENDANTS
THE CITY OF NEW YORK**

1. Upon information and belief, at all times hereinafter mentioned, the defendant,
THE CITY OF NEW YORK, is a municipal corporation organized and existing under, and by
virtue of the laws of the State of New York.

2. Prior to the commencement of this action, the plaintiff on May 24, 2019, within
ninety (90) days after the cause of this action accrued, and more than thirty (30) days prior to the
commencement of action, presented, served and filed a Notice of Claim with the defendants **THE
CITY OF NEW YORK**, for adjustment of damages sustained by the plaintiff herein and upon
which this action is based. A copy of said Notice of Claim is attached hereto as **Exhibit "A"**.

3. The statutory hearing of the plaintiff was held on March 12, 2020 by the defendant, **THE CITY OF NEW YORK.**

4. That on or about May 24, 2019 at approximately 6:00pm, at 1920 Washington Avenue, County of Bronx, State of New York, the plaintiff was unlawfully restrained, imprisoned, , humiliated and unlawfully arrested, all without the members of the **NEW YORK CITY POLICE DEPARTMENT** having probable cause to make such arrest and without the New York City Police Department conducting a proper and full investigation.

5. Plaintiff was detained against plaintiff's will until plaintiff's release from custody on May 25, 2019.

6. That upon information and belief, and at all times hereinafter mentioned, defendant, P.O. Morales, an employee of **THE NEW YORK CITY POLICE DEPARTMENT.**

7. That, upon information and belief, and at all times hereinafter mentioned, defendant, P.O. Morales, acted within the scope of his employment.

8. That at all times hereinafter mentioned, this plaintiff was falsely arrested by defendant, P.O. Morales, without justification.

9. That by reason of the foregoing, plaintiff sustained emotional distress, including loss of liberty, loss of enjoyment of life and humiliation, the full extent of which are not presently known. Plaintiff felt grave fear and intimidation for his safety. Plaintiff was deprived of freedom and liberty, was falsely arrested and imprisoned, where plaintiff sustained emotional harm, fear and anxiety.

10. Solely as a result of the foregoing, plaintiff, **MIGUEL ZORRILLA**, has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction over this action.

**AS AND FOR A SECOND CAUSE OF ACTION
FOR FALSE ARREST**

11. Plaintiff repeats, realleges and reiterates each and every allegation set forth in paragraphs of the Complaint designated "1" through "14" with the same force and effect as if fully set forth herein at length.

12. That the aforescribed action by the defendants, their agents, servants and/or employees deprived plaintiff of his liberty.

13. Acting under color of law, Defendants worked a denial of Plaintiff's rights, privileges or immunities secured by the United States Constitution or by Federal law, to wit, by (a) depriving Plaintiff of his liberty without due process of law, by taking him into custody and holding him there against his will; (b) by conspiring for the purpose of impeding and hindering the due course of justice, with intent to deny Plaintiff equal protection of laws; and (c) by refusing or neglecting to prevent such deprivations and denials to plaintiff, thereby depriving plaintiff of his rights, privileges, and immunities as guaranteed by the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States.

14. Defendants, **THE CITY OF NEW YORK** and **POLICE DEPARTMENT**, negligently trained Defendant, P.O. MORALES.

15. There was no warrant for the arrest of Plaintiff on May 24, 2019. The arrest was without reasonable grounds for said Defendant to believe Plaintiff had committed an offense and Defendants knew they were without probable cause to arrest Plaintiff, **MIGUEL ZORRILLA**.

16. No complaint, information, or indictment was ever sworn against Plaintiff alleging offenses occurring prior to the moment Defendant, **POLICE OFFICER MORALES**, handcuffed plaintiff and placed him under arrest.

17. As a result of their concerted unlawful and malicious arrest by Defendant, Plaintiff was deprived of both his liberty without due process of law and his right to equal protection of the laws, and the due course of justice was impeded, in violation of the Fifth and Fourteenth Amendments of the Constitution of the United States and 42 U.S.C. Section 1983.

18. WHEREFORE, Plaintiff demands judgment for the false arrest against all Defendants in an amount which exceeds the jurisdictional limits of all other courts which would otherwise have jurisdiction, including attorney's fees, and for such other and further relief that this Court deems just and equitable.

**AS AND FOR A THIRD CAUSE OF ACTION
FOR DETENTION AND CONFINEMENT**

19. Plaintiff repeats, realleges and reiterates each and every allegation set forth in paragraphs of the Complaint designated "1" through "22" with the same force and effect as if fully set forth herein at length.

20. The unlawful and illegal conduct of the Defendants, their agents, servants and employees and each of them, deprived Plaintiff of the following rights, privileges and immunities:

- a) The right of Plaintiff to be secure in their person and effects against unreasonable search and seizure;
- b) The right of Plaintiff to be informed of the nature and cause of the accusation against them;

c) The right of Plaintiff not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws;

21. As a result of their concerted unlawful and malicious detention and confinement of Plaintiff, **MIGUEL ZORRILLA**, Defendants deprived Plaintiff of both his right to his liberty without due process of law and his right to equal protection of the laws, and the due course of justice was impeded, in violation of the Fifth and Fourteenth Amendments of the Constitution of the United States and 42 U.S.C. Section 1983.

22. WHEREFORE, Plaintiff demands judgment for the false detention and confinement against all Defendants in an amount which exceeds the jurisdictional limits of all other courts which would otherwise have jurisdiction, including attorney's fees, and for such other and further relief that this Court deems just and equitable.

**AS AND FOR A FOURTH CAUSE OF ACTION
FOR VIOLATIONS OF 42 U.S.C. 1983: REFUSING OR
NEGLECTING TO PREVENT**

23. Plaintiff repeats, realleges and reiterates each and every allegation set forth in paragraphs of the Complaint designated "1" through "23" with the same force and effect as if fully set forth herein at length.

24. At all times relevant to this Complaint, Defendant, **NEW YORK CITY POLICE OFFICER MORALES** was acting under the direction and control of Defendant, **CITY OF NEW YORK** and **THE NEW YORK CITY POLICE DEPARTMENT**.

25. Acting under color of law and pursuant to official policy or custom, Defendants knowingly, recklessly, or with gross negligence failed to instruct, supervise, control, and discipline on a continuing basis Defendant police officers in their duties to refrain from:

- a. unlawfully and maliciously harassing a citizen who was acting in accordance with his constitutional and statutory rights, privileges, and immunities,
- b. unlawfully and maliciously arresting, imprisoning and prosecuting a citizen who was acting in accordance with his constitutional and statutory rights, privileges, and immunities,
- c. conspiring to violate the rights, privileges, and immunities guaranteed to Plaintiff by the Constitution and laws of the United States and the laws of the City of New York; and
- d. otherwise depriving Plaintiff of his constitutional and statutory rights, privileges, and immunities.

26. Defendants had knowledge or, had they diligently exercised that duties to instruct, supervise, control, and discipline on a continuing basis, should have had knowledge that the wrongs conspired to be done, as heretofore alleged, were about to be committed. Defendants had power to prevent or aid in preventing the commission of said wrongs, could have done so by reasonable diligence, and knowingly, recklessly, or with gross negligence failed or refused to do so.

27. Defendants directly or indirectly, under color of law, approved or ratified the unlawful, deliberate, malicious, reckless, and wanton conduct of Defendant police officers heretofore described.

28. As a direct and proximate cause of the negligent and intentional acts of Defendants, Plaintiff suffered emotional distress, severe mental anguish in connection with the deprivation of his constitutional and statutory rights guaranteed by the Fifth and Fourteenth Amendments of the Constitution of the United States and protected by 42 U.S.C. Section 1983.

29. WHEREFORE, Plaintiff demands judgment for the refusing or neglecting to prevent the aforementioned against all Defendants in an amount which exceeds the jurisdictional limits of all other

courts which would otherwise have jurisdiction, including attorney's fees, and for such other and further relief that this Court deems just and equitable.

**AS AND FOR A FIFTH CAUSE OF ACTION
FOR MALICIOUS ABUSE OF PROCESS**

31. Plaintiff repeats, realleges and reiterates each and every allegation set forth in paragraphs of the Complaint designated "1" through "33" with the same force and effect as if fully set forth herein at length.

32. Defendants maliciously used a "legal process" to accomplish some ulterior purpose for which it was not designed or intended, or which was not the legitimate purpose of the particular process employed."

33. Plaintiff committed no criminal offense or other offense and no police officer could have objectively believed that Plaintiff committed any offense under the law to justify a stop, let alone an arrest, a custodial arrest, incarceration and detention, the preferral of any charges, including but not limited to possessing a forged instrument, and his criminal prosecution associated with the preferral of those criminal charges.

34. There was no basis for the stop, arrest and custodial arrest of Plaintiff by the New York City Police Officers, each of whom is an agent and employee of defendants, THE CITY OF NEW YORK.

35. There was no justification to handcuff plaintiff, to detain plaintiff for the period of time he was held in custody until he appeared at his arraignment when and where he was released without bail and required to return to Court hereafter when and where, the charge preferred against Plaintiff was eventually dismissed and the records sealed.

36. WHEREFORE, Plaintiff demands judgment for the malicious abuse of process against all Defendants in an amount which exceeds the jurisdictional limits of all other courts which would otherwise have jurisdiction, including attorney's fees, and for such other and further relief that this Court deems just and equitable.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS**

37. Plaintiff repeats, realleges and reiterates each and every allegation set forth in paragraphs of the Complaint designated "1" through "39" with the same force and effect as if fully set forth herein at length.

38. Defendants intentionally and deliberately inflicted emotional distress on Plaintiff by maliciously prosecuting Plaintiff, **MIGUEL ZORRILLA**, or by abusing the lawful process by unlawful purpose, or by violating Plaintiff's constitutional rights, or by falsely arresting and imprisoning the plaintiff, by conspiring against Plaintiff, or by interfering with Plaintiff's state civil rights by threats, coercion, or intimidation, or knew or should have known that emotional distress was the likely result of their conduct.

39. Defendants' conduct was extreme and outrageous, beyond all possible bounds of decency and utterly intolerable in a civilized community.

40. Defendants' intentional and outrageous conduct caused Plaintiff to suffer severe emotional distress.

41. Plaintiff's arrest was humiliating and embarrassing, and induced stress and anxiety in Plaintiff.

42. Plaintiff's arrest and the pendency of the criminal court proceeding, until it was

dismissed, induced additional stress and anxiety, was emotionally distressful, and otherwise publically humiliating and embarrassing.

43. As a proximate result of the foregoing, Plaintiff sustained severe and protracted emotional injuries, was incapacitated from pursuing his normal tasks, experienced great emotional pain and suffering, all which Plaintiff believes will continue in the future, all to his detriment and loss in an amount which exceeds the jurisdictional limits of all other Courts.

44. WHEREFORE, Plaintiff demands judgment for the intentional infliction of emotional distress against all Defendants in an amount which exceeds the jurisdictional limits of all other courts which would otherwise have jurisdiction, including attorney's fees, and for such other and further relief that this Court deems just and equitable.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR
GROSS NEGLIGENCE**

45. Plaintiff repeats, realleges and reiterates each and every allegation set forth in paragraphs of the Complaint designated "1" through "43" with the same force and effect as if fully set forth herein at length.

46. Defendants owed a duty to supervise or train the officer and to take steps to prevent events such as occurred here, to wit, the false arrest and imprisonment and the swearing to charges without probable cause.

47. Defendants owed a duty to act according to the standard of ordinary care of a police officer, to wit, to conduct a proper investigation, the failure of which was the proximate cause of Plaintiff's injury.

48. Defendants breached that duty by failing to act as ordinary police officer would act, to wit, by failing to perform his duties and by Defendant by failing adequately to control and to supervise its officers.

49. As a result of those breaches, which were the proximate causes of Plaintiff's injury, Plaintiff, **MIGUEL ZORRILLA** suffered harm and damages.

50. WHEREFORE, Plaintiff demands judgment for gross negligence against all Defendants in an amount which exceeds the jurisdictional limits of all other courts which would otherwise have jurisdiction, including attorney's fees, and for such other and further relief that this Court deems just and equitable.

WHEREFORE, plaintiffs demand judgment on the first cause of action in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction over this action; on the second cause of action in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction over this action; on the third cause of action in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction over this action; on the fourth cause of action in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction over this action; on the fifth cause of action in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction over this action; on the sixth cause of action in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction over this action; on the seventh cause of action in an

amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction over this action, together with the costs and disbursements of this action and such other and further relief as the Court deems just and proper.

Dated: Garden City, New York
July 29, 2020

Yours, etc.,

A handwritten signature in black ink, appearing to read 'Hermann P. Gruber', written over a horizontal line.

STEINBERG & GRUBER, P.C.

By: Hermann P. Gruber, Esq.

Attorneys for Plaintiff

300 Garden City Plaza, Suite 218

Garden City, New York 11530

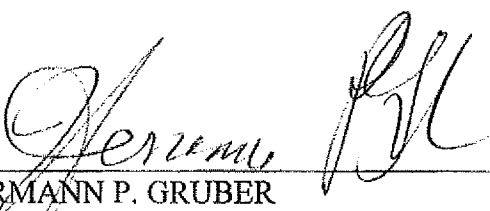
(516) 663-0999

ATTORNEY'S VERIFICATION

HERMANN P. GRUBER, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury: I am an attorney at STEINBERG & GRUBER, P. C., attorneys of record for Plaintiff, MIGUEL ZORRILLA. I have read the annexed **COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiff is not presently in the county wherein I maintain my offices.

Dated: Garden City, New York
July 29, 2020


HERMANN P. GRUBER